

## 25SMCV04130 25SMCV04130

County: los-angeles

Division: Civil Law and Motion

Department: O

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### TENTATIVE RULING

July 27, 2026

25SMCV04130

(Bohbot v. Moraes, et. al.)

### INSTANT MOTION

On March 10, 2026, plaintiff Marc Bohbot (Plaintiff) filed the instant motion to compel initial responses from defendant Kleverson Klayton Gomes De Oliveira Moraes (Defendant) to Plaintiff's first set of discovery (Form Interrogatories, Special Interrogatories, Requests for Production). Plaintiff also requests monetary sanctions in the amount of \$8,025.00 (See Reply at p. 4, voluntarily reducing the previous amount requested (\$10,387.50) by \$2,362.50.)

No opposition has been filed.

Plaintiff filed a reply.

### DISCUSSION

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party's remedy is to seek a court order compelling answers thereto. (Id., § 2030.290, subd. (b).) "[T]he court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a

response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust..." (Id., subd. (c).)

If a party to whom a demand is directed fails to serve a timely response, the propounding party's remedy is to seek a court order compelling responses to the inspection demand. (Id., § 2031.300, subd. (b).) "[T]he court shall impose a monetary sanction... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust..." (Id., subd. (c).)

Plaintiff's unopposed motion to compel is GRANTED.

Plaintiff served Defendant with his first set of written discovery on January 20, 2026. (Woodland Decl., ¶¶ 2-4, Exs. A, B & C.) Defendant was required to serve his response within thirty (30) calendar days from service. (Code Civ. Proc., § 2033.250, subd. (a).) This thirty-day deadline was extended by two (2) court days for email service. (Id., § 1010.6, subd. (a)(3)(B).) It was extended by five (5) calendar days for regular U.S. mail service. (Id., § 1013(a).) Thus, Defendant's deadlines to serve his responses to Plaintiff's discovery requests were February 23, 2026 and February 24, 2026, respectively. Both dates have passed. Defendant has not provided responses to date and emailed Plaintiff's counsel's assistant that he would not be responding to any discovery requests. (Woodland Decl., ¶ 6-7, Ex. D.)

Plaintiff's request for monetary sanctions is GRANTED, IN PART, in the reduced amount of \$4,012.50.

The Court finds that monetary sanctions are appropriate, but the amount requested (\$8,025.00) is not reasonable. Thirteen (13) hours is not reasonable given the experience of counsel and the fact that this is a relatively simple discovery motion where no responses have been served. (Woodland Decl., ¶¶ 8-23, Exs. E & F; Woodland Reply Decl., ¶¶ 6-8.) The Court therefore reduces the amount by half, for a total of \$4,012.50. Such amount to

be paid by Defendant to Plaintiff's counsel within thirty (30) days.

Moving

party to give notice.